

HOUSE BILL 1485

By Hale

AN ACT to amend Tennessee Code Annotated, Title 38,
Chapter 8, relative to the peace officer standards
and training commission.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 38-8-107, is amended by adding the following new subsection:

(1) The commission shall issue a certificate of compliance to a law enforcement officer upon separation from service or retirement from the law enforcement agency that employed the officer. Upon separation from service or retirement, the former officer is entitled to certification annually if the former officer:

(A) Has satisfactorily completed an approved recruit training program as required by this part;

(B) Is up to date on the former officer's annual in-service training commensurate with the former officer's rank and responsibilities;

(C) Provides the commission with a letter of good standing upon separation from service or retirement from the executive head of the officer's former employing law enforcement agency for each year that the former officer applies for certification under this subsection ();

(D) Provides the commission annually with proof satisfactory that the former officer is a resident of this state, including the county of residence;

(E) Pays any fee associated with the issuance or renewal of such certification; and

(F) Satisfies all other requirements of the commission for certification under this subsection () after separation from service or retirement.

(2) A former law enforcement officer certified under this subsection ():

(A) Is not entitled to a pay supplement for such certification; and

(B) Shall notify the commission immediately upon becoming a resident of another state or territory of the United States. Upon receipt of such notice, the former officer is not eligible to renew the certification.

(3) The commission may promulgate rules to carry out this subsection () in accordance with the Uniform Administrative Procedures Act, codified in title 4, chapter 5.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.